

DOUGLAS, J., concurring.

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state support of churches said the principle was violated when even "three pence" was appropriated to that cause by the Government.¹ It therefore does not do to talk about taxpayers' interest as "infinitesimal." The restraint on "liberty" may be fleeting and passing and still violate a fundamental constitutional guarantee. The "three pence" mentioned by Madison may signal a monstrous invasion by the Government into church affairs, and so on.

The States have experimented with taxpayers' suits and with only two exceptions² now allow them. A few state decisions are frankly based on the theory that a taxpayer is a private attorney general seeking to vindicate the public interest.³ Some of them require that the taxpayer have more than an infinitesimal financial stake in the problem.⁴ At the federal level, Congress can of

¹ Memorial and Remonstrance against Religious Assessments, 2 Writings of James Madison 186 (Hunt ed. 1901).

² The two clear exceptions are municipal taxpayers' suits in Kansas (see *Asendorf v. Common School Dist. No. 102*, 175 Kan. 601, 266 P. 2d 309 (1954)) and state taxpayers' suits in New York (see *Schieffelin v. Komfort*, 212 N. Y. 520, 106 N. E. 675 (1914); *St. Clair v. Yonkers Raceway*, 13 N. Y. 2d 72, 242 N. Y. S. 2d 43, 192 N. E. 2d 15 (1963); but see *Kuhn v. Curran*, 294 N. Y. 207, 61 N. E. 2d 513 (1945)).

³ See, e. g., *Clapp v. Town of Jaffrey*, 97 N. H. 456, 91 A. 2d 464 (1952); *Vibberts v. Hart*, 85 R. I. 35, 125 A. 2d 193 (1956); *Lien v. Northwestern Engineering Co.*, 74 S. D. 476, 54 N. W. 2d 472 (1952). ("It is now the settled law of this state that a taxpayer or elector having no special interest may institute an action to protect a public right." 74 S. D., at 479, 54 N. W. 2d, at 474.)

⁴ See, e. g., *Crews v. Beattie*, 197 S. C. 32, 14 S. E. 2d 351 (1941); *Goodland v. Zimmerman*, 243 Wis. 459, 10 N. W. 2d 180 (1943) (taxpayer may not enjoin state expenditure of \$1.49); contra, *Richardson v. Blackburn*, 41 Del. Ch. 54, 187 A. 2d 823 (1963); *Woodard v. Reily*, 244 La. 337, 152 So. 2d 41 (1963).

The estimates of commentators as to how many jurisdictions have specifically upheld taxpayers' suits range from 32 to 40. See